

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E

**DEFENDANT’S SUPPLEMENTAL MOTION FOR REHEARING AND TO
AMEND / CLARIFY FINDINGS (LACK OF INDEPENDENT JUDGMENT;
ABSENCE OF COMPETENT, SUBSTANTIAL EVIDENCE; ERRONEOUS
RELIANCE ON PRE-SUIT LETTER AS “CLEAR AND CONVINCING”
PROOF)**

COMES NOW Defendant, Marc Moszkowski, pro se, and pursuant to Fla.
R. Civ. P. 1.530, respectfully moves for rehearing and for
amendment/clarification of the Final Judgment entered September 3, 2025,
and states:

I. INTRODUCTION

This supplemental motion addresses a core defect in Count 3 (Civil Theft).
The Final Judgment characterizes Plaintiffs’ Exhibit 13—a pre-suit demand
letter sent approximately two months before the Complaint—as “clear and
convincing evidence” of civil theft. A demand letter merely asserts

accusations; it is not proof of the statutory elements by any standard, much less the heightened clear-and-convincing standard required for civil theft. Treating a one or two line accusation in a pre-filing letter as dispositive proof—while not engaging Defendant’s sworn counter-evidence and defenses—collapses the adjudicative function and defeats the very purpose of a lawsuit. Rehearing is warranted so the Court can (i) withdraw reliance on PX-13 as evidence, (ii) make independent findings in the Court’s own words, and (iii) identify the actual admitted record evidence (if any) supporting each element and figure.

II. LEGAL STANDARD (Rule 1.530)

On rehearing, the Court may correct factual/legal errors, amend findings, and clarify the evidentiary basis for its rulings. Even when adopting party-submitted drafts, the Final Judgment must reflect the Court’s independent judgment, and each material finding must be supported by competent, substantial evidence in the record.

III. DUE-PROCESS CONCERN

Defendant recognizes and respects the judiciary’s role. However, when a pre-suit demand letter is treated as dispositive proof while sworn counter-evidence and defenses go unaddressed, the adjudicative function is

impaired. Defendant asks the Court to cure this by (i) identifying the actual record evidence relied upon for each element and figure; (ii) making independent findings in the Court's own words; and (iii) addressing the principal defenses (ownership chronology, offsets/netting, authentication, and statutory elements), consistent with Rule 1.530.

IV. PURPOSE OF ADJUDICATION (Due Process)

A demand letter frames accusations; it is not proof of those accusations. Litigation exists to test such claims against admitted, competent evidence from both sides. Characterizing the accusations in Plaintiffs' Exhibit 13 (a pre-filing letter) as "*clear and convincing evidence*," without engaging the opposing record materials, collapses the adjudicative function and defeats due process. The Final Judgment should therefore (i) identify the evidence actually relied on for each element, (ii) address defenses and counter-proof, and (iii) withdraw any characterization of PX-13 as dispositive proof.

V. SPECIFIC DEFECTS REQUIRING CORRECTION

- 1. Independent Judgment:** Order mirrors Plaintiffs' narrative while omitting discussion of Defendant's sworn filings and exhibits.
- 2. Competent, Substantial Evidence:** Monetary figures and element findings lack admissible support and conflict with records.

3. PX-13 (Pre-Suit Demand Letter): Accusatory content is not evidence of civil theft or any element.

4. Offsets & Ownership Chronology: Developed defenses not adopted or rejected with reasoning.

VI. WHEREFORE

WHEREFORE, Defendant respectfully requests that the Court:

- 1.** Grant rehearing under Rule 1.530;
- 2.** Amend/clarify the Final Judgment to state the Court's independent factual findings and legal conclusions with pinpoint record citations;
- 3.** Withdraw any reliance on PX-13 as "clear and convincing evidence," and, if any such claim remains, restate element-by-element findings supported by admitted, competent evidence;
- 4.** Strike or modify any finding not supported by competent, substantial evidence; and
- 5.** Grant such other and further relief as is just.

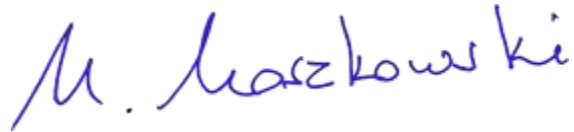
Respectfully submitted this 24th day of September, 2025

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 24th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.